NO WORK PERFORMED AFFIDAVIT

(ATTACH TO INVOICE)

OMO#_____

STATE OF NEW YORK }
} SS:
COUNTY OF _____}

_____, being duly sworn, deposes and says:

1. I am a contractor hired by NYC Department of Housing Preservation and Development ("HPD") to perform emergency repairs.

2. I was directed by HPD in the Confirmation of Award for Open Market Order ("OMO) # _____ to go to the building located at _____ in response to an emergency condition.

3. I could NOT perform the repair work and am entitled to a service charge of $_____.

I could NOT perform the repair work as directed on that day for the following reason(s): Answer 4, 5, 6 <u>OR</u> 7

4. The area where work was required to be performed was **<u>physically inaccessible</u>**. The inaccessibility was due to:
   _____
   _____

   a. I made two attempts not less than 72 hours of each other to gain access on _____ and _____. I attempted to contact the tenant by telephone on _____ and _____.

5. When I arrived at the work site on _____ I found the **<u>work described in the OMO had been completed by others.</u>**

6. When I arrived at the work site on _____ I found the **<u>work described in the OMO being performed by others</u>**.
   a. The person/contractor performing work gave his/her name as: _____.

   b. The person performing the work refused to give his/her name.

OMO # _____

7. When I arrived at the work site on _____, I was **denied access** by the tenant, the owner, the owner's employee or agent or a person who claimed to be in control of the building.
   a. The individual who prevented me from completing the work:
      i. Stated his/her name as: _____ and relationship to building_____.

   b. Description of individual _____ (e.g. male/female, tall/short, dark light hair)

   c. Telephone number of the individual _____.

_____
Signature

_____
Type or Print Name

Sworn to me this ____ day of _____, 20__

_____

Notary Public